

25STCV15616 25STCV15616

County: los-angeles

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Case Number: 25STCV15616 Hearing Date: June 29, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

NORMAN

KAI LEE,

Plaintiff,

vs.

DEMETRIUS

TENNELL LOCKETT, TOWNSEND & LOCKETT, DEITRA CRAWLEY, JANET SCOTT, SHANI

WHISONANT, DOES 1 THROUGH 10, INCLUSIVE, et al.,

Defendants.

Case No.:

25STCV15616

Hearing

Date:

June 29,
2026

[TENTATIVE]

ORDER RE: DEFENDANT DEITRA CRAWLEY'S
MOTION TO VACATE ENTRY OF DEFAULT

I. BACKGROUND

On May 29, 2025, Plaintiff Norman Kai Lee ("Plaintiff") filed a complaint against Defendants Demetrius Tennell Lockett ("Lockett"), Townsend & Lockett ("T&L"), Deitra Crawley ("Crawley"), Janet Scott ("Scott"), Shani Whisonant ("Whisonant"), and Does 1 through 10 (collectively, "Defendants"), alleging causes of action for (1) unauthorized practice of law, (2) tortious interference with contract, (3) civil extortion, (4) violation of Business & Professions Code §17200, (5) abuse of process, (6) negligent misrepresentation, and (7) intentional infliction of emotional distress. Plaintiff alleges Defendants operated with a suspended business license and were not licensed to practice law in California but did so and coerced and intimidated Plaintiff through their unauthorized practice of law.

On October 21, 2025, the Court entered default against Scott.

On December 1, 2025, the Court entered default against Lockett, T&L, Crawley, and Whisonant.

On March 4, 2026, Crawley filed the instant motion to vacate entry of default.

On June 22, 2026, Crawley filed a reply.

As of June 24, 2026, Plaintiff has not filed an opposition.

II. LEGAL STANDARD

Code of Civil Procedure
("CCP") § 473(b) states: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal,

order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief ... shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any ... dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties."

"When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered." (Code Civ. Proc., § 473.5, subd. (a).)

III. DISCUSSION

Crawley moves to vacate the entry of default against her pursuant to CCP § 473 on the grounds of mistake, inadvertence, and/or excusable neglect and pursuant to CCP § 473.5 on the grounds that Plaintiff's defective pleading requires that default be set aside.

Crawley previously worked at T&L as a corporate attorney but left her employment there before April 30, 2025. (Crawley Decl., ¶ 2; Lockett Decl., ¶ 2.) Crawley never received a copy of the summons and complaint, notice from Plaintiff that he initiated an action, a copy of any filing in the action. (Crawley Decl., ¶ 4.) Lockett, the managing partner for T&L, acknowledges that Plaintiff's service agent purports to have diligently sought to personally serve Defendants at T&L's Atlanta offices, but states he never received any communication regarding service on Defendants. (Lockett Decl., ¶¶ 5-6.) Lockett learned of Plaintiff's purported

service efforts by reviewing the docket in this action. (Lockett Decl., ¶ 6.) Lockett's contact information is on T&L's website, and Plaintiff sent Lockett one or more emails prior to bringing this lawsuit, but Lockett was never contacted regarding service of process. (Lockett Decl., ¶ 6.)

On June 6, 2025, Lockett received copies of the summons and complaint, but all summonses were directed to all defendants in an "omnibus fashion." (Lockett Decl., ¶ 7.) Further, the complaint, its verification, and certificate of service were unsigned. (Lockett Decl., ¶ 7; Exhs. A-B.) Lockett did not provide copies to the named defendants because they no longer worked at T&L and he understood that the attempted service was not perfected until a mailed copy was sent by U.S. mail. (Lockett Decl., ¶ 8.) Therefore, he chose to watch for a U.S. mail delivery of the summons and complaint, which he never received. (Lockett Decl., ¶ 8.)

Then, on July 12, 2025, Lockett received a copy of Plaintiff's request for entry of default, but because he had not received a mailed copy of the summons and complaint, he emailed Plaintiff to inform him that service was unperfected and defective. (Lockett Decl., ¶ 9; Exh. C.) Lockett and T&L never received copies of the summons and complaint in this action. (Lockett Decl., ¶ 10.) However, near the end of 2025, Lockett learned of Plaintiff's efforts to secure default against Defendants, so Lockett began reviewing the docket for this action. (Lockett Decl., ¶ 11.) On December 30, 2025, Lockett sent Plaintiff another email advising him that service remained unperfected and offered to discuss a stipulation to accept service, which Plaintiff did not accept. (Lockett Decl., ¶ 11; Exh. D.)

Crawley became aware of this lawsuit on January 4, 2026 when contacted by Lockett, her former manager partner, about Plaintiff's lawsuit. (Crawley Decl., ¶ 5; Lockett Decl., ¶ 12.) Crawley was unaware of Plaintiff's efforts to obtain default judgment against her and, after she learned of the lawsuit, quickly engaged counsel to represent her. (Crawley Decl., ¶ 5.) Crawley argues she lacked actual notice of this lawsuit in time to properly respond and Plaintiff's efforts to serve her were wholly deficient. Crawley further argues she is entitled to have default set aside because Plaintiff delivered the complaint to her former employer, without a pre-suit investigation to her whereabouts of employment at the time of suit or service.

The Court finds that Crawley sufficiently attests

that Lockett's mistake, inadvertence, surprise, or neglect caused the default against Crawley. Further, the Court finds that Crawley sufficiently establishes that Plaintiff's defective pleading requires that default be set aside under CCP § 473.5(a). Notably, Plaintiff does not oppose this motion.

IV. CONCLUSION

Defendant Crawley's motion to vacate entry of default is GRANTED.

Moving Party is ordered to give notice.

DATED:

June 29, 2025

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative

ruling, the Court may prohibit the withdrawal of the subject motion without leave.